

On the One Church of Christ on Earth, in Six Books — Bk. I ch. XII; Bk. III; Bk. VI ch. XVIII and following

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A. Book I, ch. XII — the difference between heresy and schism; the Great Schism and the fact/right distinction (printed 41, 43)

A (i) — chapter heading and opening sentence (printed 41)

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What difference there is between heresy and schism.

CHAPTER TWELVE.

ALthough, however, it is necessary that every heretic be at the same time a schismatic as well (for he must needs be divided in mind and cut off who is neither bound together by the bond of faith nor held by the common root as in a tree; whence it is that Tertullian says that heresies {marg. *Near the beginning of the book de præsript.*} tear away from unity no less than schisms and dissensions;) nevertheless not every schismatic is forthwith a heretic; and these are found to be distinct on their own proper grounds, however much for the most part they coincide in fact.

A (ii) — the Great Schism and the fact/right distinction (printed 43)

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{marg. [...] tics, lib. 9[?] of the *Life of Constantine*, cap. vlt. Likewise concerning Ursinus, lib 4. of the *History of Socrates*, cap. 24. And *Turrecrematensem* lib 4. cap. 9 and *Alfon. de Castro*, lib. 1 *contra hæret.*}

[...] So also on other occasions it has come about that a schism was born for this reason alone, that the Pontiff who was held [to be such] was thought not to have been rightly and lawfully elected. Such a schism has been handed down to memory as having lasted about forty years, when three men bore themselves as Pontiffs, which at long last was brought to an end in the Council of Constance, Sigismund being king of the Romans. There were therefore hereupon many schismatics, and yet not heretics. For who would dare to fasten the charge of heresy upon any one of those who called themselves pontiffs, or upon those who obeyed them — a charge which the general Council laid

against none of them? For although we are bound to believe by faith that the legitimate successor of Peter is the supreme head of the whole Church on earth, **we are nevertheless not bound by the same faith to receive Leo or Clement or Gregory as being the true successor of Peter**: for it does not pertain to Catholic faith how any Pontiff is rightly or canonically elected, or has been elected: whence it comes about that one who should deny obedience to Clement or Leo, on this pretext alone, that he says he was not canonically elected — although he must be called a schismatic, nevertheless he ought not to be reckoned a heretic. For error in things which are of fact is one thing, error in things which are of right and of doctrine another.

Editorial note. This sentence closes at line 25 of printed 43, in mid-page; the chapter runs on without a paragraph break (there are no paragraph indentations anywhere in capp. XI–XII), so nothing of this passage runs over onto printed 44. Printed 44 is therefore not transcribed.

B. Book III — “Ecclesia” as the prelates; defect *ratione partis* vs. defect *ex toto* (printed 187–188)

B (i) — the sense of “Ecclesia” (printed 187, ll. 1–2)

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when the Church is named, the prelates themselves — as it were the senate and magistracy of the Church — are understood.

Editorial note. This clause stands at the very head of printed 187, about twenty lines above the passage that follows, not “within a few lines”; the intervening matter (Matt. 18 and Acts proof-texts, then the *homo integer / crispus, claudus, lippus* analogy) is omitted here.

B (ii) — the two modes of defect (printed 187–188)

In like manner, if the Church were said to have erred in defining something and to have failed, this failure would have to be understood as having happened in respect of a part, that is, of the ecclesiastical magistracy. For it does not belong to all to define concerning those things which are of faith, but that charge is theirs who preside over the Church: and if it should befall these to slip in decreeing, the Church is rightly said to have erred and to have fallen away from the path of the true. For we call a man blind, or not seeing, not because he has no sight in his feet, but because he has none in his eyes. But if regard is had to an absolute failure of faith, and not to an error of definition, and in that sense the Church is said to have failed: it is manifest that this is left to be judged from the whole and not from a part alone. For in this way the Church will have failed when no assembly shall

have remained endowed with the true faith; and in this manner the Church could have not failed, even if she had failed in the former way. For it would not be necessary that the whole community should straightway be found void of the true faith, for the reason that it had befallen those who preside to be deceived in defining. And therefore it happens at times that a particular Church — for example that of Carthage, in that council over which Cyprian presided — should fail according to the former mode, and not likewise of necessity according to the latter. But for the universal Church of God it has been provided, by heavenly kindness and by most certain promises,

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that she should fail in neither mode, even to the consummation of the world. Because in truth, if she were to fail by error in defining, in those who preside, easily and by a ready path the error would gradually spread into the whole body of the Church.

C. Book VI, ch. XVIII — the authority of the Church seen in her pastors; the consent of peoples and the twofold consideration of pastoral authority (printed 421–422)

C (i) — chapter heading and opening sentence (printed 421)

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That the authority of the Church, which is to be looked for chiefly in her pastors, can be undermined by no errors handed down against the faith.

CHAPTER XVIII.

AND hence the next step now seems to us to be to the treatment of the last question. {marg. *The fourth question.*}

C (ii) — the consent of peoples, and the twofold consideration of pastoral authority (printed 421–422)

For although the remaining multitude of hearers, everywhere consenting with their own pastors, brings very much of moment to the

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gravity of ecclesiastical authority, nevertheless that peoples so many, spread far and wide through all nations, **hear alike, approve with one consent, and carry out conformably — this they owe to the concord of their pastors**, which they diligently and constantly preserve in the handing down of

saving doctrine and of the institutes of Christian discipline. But this pastoral authority again, and this consent in handing down doctrine, can be regarded in two ways: once in the whole body itself of pastors and doctors who, throughout the Christian world, at diverse times and places, have flourished in the praise of doctrine and have left to posterity some monuments of their faith and erudition; once in the congregation and assembly of pastors coming together at one and the same time into one place, either for dispelling the mists of errors which new men spread abroad not without the ruin of the flock, or for the correction of morals and the restoration of collapsed discipline.

D. Book VI — the supreme judicial authority of Peter's successor; the Pelagian precedent and bad pastors; who are judges of doctrine (printed 453–455)

D (i) — the supreme authority of judging (printed 453)

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[...] pertain to this: that we may understand that there resides in the successor of Peter a certain supreme authority of judging concerning absolutely any question of Christian dogma: so that whether a contention has arisen concerning the truth of Scripture or concerning the understanding of it, besides Scripture itself — which can be nothing else than a fit instrument for proving or disproving something — a judge is to be sought here on earth.

D (ii) — the Pelagian precedent; bad pastors (printed 454)

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{marg. *See Aug. li. 2. Retra. cap. 50. & li. 4. ad Bonif. ca. vlt.*}

[...] are of doctrine, or that he cannot pronounce apart from a general council, or that he is not to be obeyed when he then pronounces. (For it is agreed that the Pelagian heresy indeed, together with its authors, was convicted and condemned by the Bishops of the Roman Church, first Innocent, then Zosimus, the letters of the African councils cooperating, no general council having been convened on that account:) nevertheless men have always been, and deservedly, most fully persuaded that his authority is of the gravest weight when, a plenary council of Bishops being employed, the whole matter has been treated and determined.

For though some be evil, nevertheless so long as they feed with saving doctrine the flocks entrusted to them, they do not cease to be pastors.

D (iii) — not all are judges of doctrine (printed 455)

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For as to what they add, *that judgment concerning doctrine pertains to all the spiritual sons of God: and therefore that the authority of the Church, on that side at least, is not to be referred back to her pastors alone, nor to be established in them alone*: in this they fall into this error, that they tear the charge and office of judging concerning doctrine away from the pastorate: so that, although they dare not confess that all the spiritual sons of God are pastors and doctors of the Church — lest they disturb the order which the Apostle intimates, saying, Are all doctors? {marg. *1. Cor. 12.*} — they nevertheless ascribe to all the spiritual the authority of judging. But the charge of judging concerning doctrine belongs properly to those whose office it is to hand down doctrine to the peoples subject to them and to feed them by teaching: so that, if not all are pastors and doctors, this also follows, that by office and charge and their proper function not all are judges of doctrine.